

Procedure No: EXP202307599 (AI/00188/2023)

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 24/04/23, Ms. A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the owner of the website, ***URL.1 (the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD). In the complaint, it was stated that the website in question did not identify the owner and responsible party, only an email address appeared, ***EMAIL.1.

SECOND: On 05/06/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of the GDPR and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following:

- On 21/06/23, it was observed that in the "Privacy Policy" of the website ***URL.1, the data of the responsible party did not appear, only the address of an email, ***EMAIL.1. However, it was verified that the website was hosted on the "SHOPIFY" platform.
- On 21/06/23, a request for information was sent to the entity SHOPIFY INTERNATIONAL LIMITED, requesting the details of the owner of the website in question. This request was acknowledged on 30/06/23, but no response has been received by this Agency regarding said request.
- On 14/08/23, a reiteration of the previous request was sent by certified postal mail to SHOPIFY INTERNATIONAL LIMITED. This request was acknowledged on 24/08/23, but no response has been received by this Agency regarding said reiteration of the request.
- On 18/12/23, when attempting to access the website ***URL.1, it was observed that it no longer existed, receiving the following message from the Google Chrome browser: "Cannot access this website. The IP address of the server for ***URL.1 could not be found (...)"

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercise of the powers attributed to it by other laws."

II

In the present case, regarding the complaint received on 24/04/23, where it was indicated that the website ***URL.1 did not display the mandatory information regarding the identification of the responsible party, only an email address was provided, this Agency confirmed, on 21/06/23, the

non-existence of the information alleged in the complaint and verified that the website was hosted on the e-commerce platform "SHOPIFY Inc."

On 21/06/23 and 14/08/23, requests for information were sent to SHOPIFY INTERNATIONAL LIMITED, requesting the details of the responsible party of the website in question, without any response being received by this Agency on either occasion.

On 18/12/23, when attempting to access the website ***URL.1, it was observed that it no longer existed, receiving the following message from the Google Chrome browser: "Cannot access this website. The IP address of the server for ***URL.1 could not be found (...)"

Therefore, based on the evidence available at this time, as no response has been received regarding the ownership of the website, from the platform where it was hosted (SHOPIFY Inc.), and confirming that it no longer exists at this time, it is not possible to attribute any type of responsibility for the facts.

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exposed in the claim, for which the Director of the Spanish Agency for Data Protection, AGREES:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí.

Director of the Spanish Agency for Data Protection.

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